

DENNIS B. HILL (CA 218131) (TX 24118204)
D.B. HILL, A PROFESSIONAL LAW CORPORATION
640 Fifth Street, Suite 200
Lincoln, California 95648
Tel: (916) 434-2553
Fax: (916) 434-2560

Attorneys for Plaintiff JUSTIN SILVA

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF CALIFORNIA

JUSTIN SILVA

Plaintiff,

vs.

UNITED STATES POSTAL SERVICE,
and LELE HONG,

Defendants.

Case No.:

COMPLAINT FOR DAMAGES

(Compensatory Damages)

1. Federal Tort Claims Act; Negligence

DEMAND FOR JURY TRIAL

Plaintiff alleges as follows:

PARTIES, JURISDICTION AND VENUE

1. Plaintiff JUSTIN SILVA ("Silva"), an adult individual, was and is at all relevant times mentioned herein a citizen of Placer County, California.
2. LELE HONG is an adult individual and resident of California.
3. At all relevant times, Plaintiff is informed and believes that the UNITED STATES POSTAL SERVICE is a federal entity covered under The Federal Tort Claims Act ("FTCA"). Plaintiff is further informed and believes that the driver who caused damages to plaintiff, LELE HONG, is considered a federal employee of the UNITED STATES

1 POSTAL SERVICE and was acting withing the course and scope of such employment
2 and/or agency when performing the acts plaintiff alleges forms the basis of his claim.

3 4. Jurisdiction is proper in this Court pursuant to 39 U.S.C. section 409(a)-(c) which
4 provides that United States district courts have original, though not exclusive,
5 jurisdiction. Plaintiff submitted a written claim for his injuries to the UNITED STATES
6 POSTAL SERVICE on January 12, 2021. A true and correct copy of the claim is
7 attached hereto and incorporated herein by reference as Exhibit "A." On January 28,
8 2021, the United States Postal Service responded to plaintiff's claim indicating that it
9 has six months from January 20, 2021, in which to adjudicate the claim. The UNITED
10 STATES POSTAL SERVICE did not adjudicate said claim within six months and thus
11 plaintiff is informed and believes that the UNITED STATES POSTAL SERVICE denied
12 plaintiff's claim as a matter of law as of July 21, 2021. This lawsuit is thus filed within six
13 months from the claim's denial.

14 5. Venue is proper in the Eastern District of California pursuant to 28 U.S.C. section
15 1391(b)(2). Plaintiff demands a jury trial.

16 **FIRST CAUSE OF ACTION**

17 **(Negligence)**

18 6. Plaintiff incorporates herein by reference all preceding paragraphs of this
19 Complaint as though fully set forth herein.

20 7. Defendants so tortiously and negligently managed their persons, property and
21 business in such a fashion which breached duties of ordinary care owed to plaintiff and
22 thereby proximately caused actual loss, injury, general and special damages to plaintiff.

23 8. Defendants' negligence includes, but is not limited to, the following acts: On
24 February 1, 2019, at approximately 9:30 a.m., plaintiff was parked in a handicapped
25 space in the parking lot at 4106 East Commerce Way, Sacramento, California 95834. At
26 the same time defendant LELE HONG, a UNITED STATES POSTAL SERVICE
27 employee who was then acting in the course and scope of said employment, drove his
28 postal truck into the parking lot. As plaintiff was getting out of his vehicle, LELE HONG

backed his truck at an unsafe speed and struck plaintiff's person and vehicle, dragging plaintiff for a distance. This crash caused plaintiff personal injuries and property damage.

9. As a direct, proximate, immediate and foreseeable result of the negligence of UNITED STATES POSTAL SERVICE and LELE HONG, plaintiff was injured and suffered grievous and permanent injuries to his physical, mental, emotional, and nervous systems, including, inter alia, injuries to his left arm, shoulder, back, left leg and other parts of his mind and body resulting in pain and suffering, disability, mental anguish, mental impairment, loss of capacity for the enjoyment of life, and medical expenses. The incident also exacerbated plaintiff's Post Traumatic Stress Disorder. Plaintiff was forced to hire physicians and medical facilities to provide medical care for the injuries proximately caused by defendants. Plaintiff's damages exceed the minimum jurisdiction of this Court, in an amount of at least \$251,400.00 to be proven at trial.

PRAYER FOR RELIEF

WHEREFORE, plaintiff prays for judgment against defendants as follows:

- A. For general damages according to proof;
- B. For special damages according to proof;
- C. For emotional distress damages according to proof;
- D. For prejudgment interest in accordance with the applicable law (California Code of Civil Procedure section 685.010(a); California Civil Code section 3291);
- E. For costs of suit herein; and
- F. For such other and further relief as the Court may deem just and proper.

Dated this January _4_, 2022

/s/ Dennis B. Hill
Dennis B. Hill, Attorney for Plaintiff JUSTIN
SILVA

Exhibit A

CLAIM FOR DAMAGE, INJURY, OR DEATH

INSTRUCTIONS: Please read carefully the instructions on the reverse side and supply information requested on both sides of this form. Use additional sheet(s) if necessary. See reverse side for additional instructions.

FORM APPROVED
OMB NO. 1105-0008

1. Submit to Appropriate Federal Agency:

United States Postal Service
Sacramento District - Tort Claims
3775 Industrial Blvd., Rm. 2089
West Sacramento, CA 95799-0044

2. Name, address of claimant, and claimant's personal representative if any.
(See instructions on reverse). Number, Street, City, State and Zip code.

Justin Silva
c/o D.B. Hill, A Professional Law Corp.
640 Fifth Street, Suite 200
Lincoln, CA 95648

3. TYPE OF EMPLOYMENT

☐ MILITARY ☒ CIVILIAN

4. DATE OF BIRTH

[REDACTED]

5. MARITAL STATUS

married

6. DATE AND DAY OF ACCIDENT

02/01/2019 Friday

7. TIME (A.M. OR P.M.)

9:30 a.m.

8. BASIS OF CLAIM (State in detail the known facts and circumstances attending the damage, injury, or death, identifying persons and property involved, the place of occurrence and the cause thereof. Use additional pages if necessary).

On the above date Mr. SILVA was parked in a handicapped space in the parking lot at 4106 East Commerce Way, Sacramento, CA 95834. At the same time one LELE HONG, a USPS postal employee, drove his truck into the parking lot. As Mr. SILVA was getting out of his vehicle, Mr. HONG backed his truck up at an unsafe speed, striking Mr. SILVA's person and vehicle, and dragged Mr. SILVA for a distance, causing him personal injuries and property damage. Mr. HONG, while acting in the course and scope as a USPS employee, negligently operated a USPS truck thereby proximately causing Mr. SILVA legal damages.

9. PROPERTY DAMAGE

NAME AND ADDRESS OF OWNER, IF OTHER THAN CLAIMANT (Number, Street, City, State, and Zip Code).

BRIEFLY DESCRIBE THE PROPERTY, NATURE AND EXTENT OF THE DAMAGE AND THE LOCATION OF WHERE THE PROPERTY MAY BE INSPECTED.
(See instructions on reverse side).

Mr. SILVA's vehicle sustained damage to the driver's side door, driver's side fender, and the console. Mr. SILVA has the car in his possession.

10. PERSONAL INJURY/WRONGFUL DEATH

STATE THE NATURE AND EXTENT OF EACH INJURY OR CAUSE OF DEATH, WHICH FORMS THE BASIS OF THE CLAIM. IF OTHER THAN CLAIMANT, STATE THE NAME OF THE INJURED PERSON OR DECEDENT.

Mr. SILVA sustained injuries to his left arm, shoulder and back, with pain radiating down into his left leg. In addition, this incident exacerbated Mr. SILVA's Post Traumatic Stress Disorder that he suffers from. Mr. SILVA has incurred medical bills as a direct result of the injuries caused by this incident, and has suffered noneconomic damages such as loss of enjoyment of life, pain, suffering, emotional distress, anxiety, PTSD symptoms, embarrassment, inconvenience, and anguish.

11. WITNESSES

NAME

ADDRESS (Number, Street, City, State, and Zip Code)

unkn. empls. at CA Lottery (Jodi _?)

4106 East Commerce Way, Sacramento, CA 95834

12. (See instructions on reverse).

AMOUNT OF CLAIM (in dollars)

12a. PROPERTY DAMAGE

12b. PERSONAL INJURY

12c. WRONGFUL DEATH

12d. TOTAL (Failure to specify may cause forfeiture of your rights).

1,400.00

250,000.00

251,400.00

I CERTIFY THAT THE AMOUNT OF CLAIM COVERS ONLY DAMAGES AND INJURIES CAUSED BY THE INCIDENT ABOVE AND AGREE TO ACCEPT SAID AMOUNT IN FULL SATISFACTION AND FINAL SETTLEMENT OF THIS CLAIM.

13a. SIGNATURE OF CLAIMANT (See instructions on reverse side).

Dennis P. Hill, Attorney for Justin Silva

13b. PHONE NUMBER OF PERSON SIGNING FORM

916-434-2553

14. DATE OF SIGNATURE

01/12/2021

CIVIL PENALTY FOR PRESENTING
FRAUDULENT CLAIM

The claimant is liable to the United States Government for a civil penalty of not less than \$5,000 and not more than \$10,000, plus 3 times the amount of damages sustained by the Government. (See 31 U.S.C. 3729).

CRIMINAL PENALTY FOR PRESENTING FRAUDULENT
CLAIM OR MAKING FALSE STATEMENTS

Fine, imprisonment, or both. (See 18 U.S.C. 287, 1001.)

Authorized for Local Reproduction
Previous Edition is not Usable

NSN 7540-00-634-4045

STANDARD FORM 95 (REV. 2/2007)
PRESCRIBED BY DEPT. OF JUSTICE
28 CFR 14.2

INSURANCE COVERAGE

In order that subrogation claims may be adjudicated, it is essential that the claimant provide the following information regarding the insurance coverage of the vehicle or property.

15. Do you carry accident insurance? ☒ Yes If yes, give name and address of insurance company (Number, Street, City, State, and Zip Code) and policy number. ☐ No

State Farm. Mr. SILVA is currently suffering from a stroke and does not know the address and policy number at this time. He is endeavoring to obtain that information and will provide it as soon as possible.

16. Have you filed a claim with your insurance carrier in this instance, and if so, is it full coverage or deductible? ☒ Yes ☐ No 17. If deductible, state amount.

Mr. SILVA's carrier, State Farm, paid the property damage in the amount of approx. \$1,300 and Mr. SILVA paid \$100 as a deductible.

100.00

18. If a claim has been filed with your carrier, what action has your insurer taken or proposed to take with reference to your claim? (It is necessary that you ascertain these facts). State Farm paid the property damage portion of the claim, less the \$100 deductible Mr. SILVA paid. Mr. SILVA is informed and believes that State Farm has not paid any of the medical costs.

19. Do you carry public liability and property damage insurance? ☒ Yes If yes, give name and address of insurance carrier (Number, Street, City, State, and Zip Code). ☐ No

State Farm, as indicated above.

INSTRUCTIONS

Claims presented under the Federal Tort Claims Act should be submitted directly to the "appropriate Federal agency" whose employee(s) was involved in the incident. If the incident involves more than one claimant, each claimant should submit a separate claim form.

Complete all items - Insert the word NONE where applicable.

A CLAIM SHALL BE DEEMED TO HAVE BEEN PRESENTED WHEN A FEDERAL AGENCY RECEIVES FROM A CLAIMANT, HIS DULY AUTHORIZED AGENT, OR LEGAL REPRESENTATIVE, AN EXECUTED STANDARD FORM 95 OR OTHER WRITTEN NOTIFICATION OF AN INCIDENT, ACCOMPANIED BY A CLAIM FOR MONEY

DAMAGES IN A **SUM CERTAIN** FOR INJURY TO OR LOSS OF PROPERTY, PERSONAL INJURY, OR DEATH ALLEGED TO HAVE OCCURRED BY REASON OF THE INCIDENT. THE CLAIM MUST BE PRESENTED TO THE APPROPRIATE FEDERAL AGENCY WITHIN **TWO YEARS** AFTER THE CLAIM ACCRUES.

Failure to completely execute this form or to supply the requested material within two years from the date the claim accrued may render your claim invalid. A claim is deemed presented when it is received by the appropriate agency, not when it is mailed.

The amount claimed should be substantiated by competent evidence as follows:

If instruction is needed in completing this form, the agency listed in item #1 on the reverse side may be contacted. Complete regulations pertaining to claims asserted under the Federal Tort Claims Act can be found in Title 28, Code of Federal Regulations, Part 14. Many agencies have published supplementing regulations. If more than one agency is involved, please state each agency.

(a) In support of the claim for personal injury or death, the claimant should submit a written report by the attending physician, showing the nature and extent of the injury, the nature and extent of treatment, the degree of permanent disability, if any, the prognosis, and the period of hospitalization, or incapacitation, attaching itemized bills for medical, hospital, or burial expenses actually incurred.

The claim may be filled by a duly authorized agent or other legal representative, provided evidence satisfactory to the Government is submitted with the claim establishing express authority to act for the claimant. A claim presented by an agent or legal representative must be presented in the name of the claimant. If the claim is signed by the agent or legal representative, it must show the title or legal capacity of the person signing and be accompanied by evidence of his/her authority to present a claim on behalf of the claimant as agent, executor, administrator, parent, guardian or other representative.

(b) In support of claims for damage to property, which has been or can be economically repaired, the claimant should submit at least two itemized signed statements or estimates by reliable, disinterested concerns, or, if payment has been made, the itemized signed receipts evidencing payment.

If claimant intends to file for both personal injury and property damage, the amount for each must be shown in item number 12 of this form.

(c) In support of claims for damage to property which is not economically repairable, or if the property is lost or destroyed, the claimant should submit statements as to the original cost of the property, the date of purchase, and the value of the property, both before and after the accident. Such statements should be by disinterested competent persons, preferably reputable dealers or officials familiar with the type of property damaged, or by two or more competitive bidders, and should be certified as being just and correct.

(d) Failure to specify a sum certain will render your claim invalid and may result in forfeiture of your rights.

PRIVACY ACT NOTICE

This Notice is provided in accordance with the Privacy Act, 5 U.S.C. 552a(e)(3), and concerns the information requested in the letter to which this Notice is attached.

B. *Principal Purpose:* The information requested is to be used in evaluating claims.

A. *Authority:* The requested information is solicited pursuant to one or more of the following: 5 U.S.C. 301, 28 U.S.C. 501 et seq., 28 U.S.C. 2671 et seq., 28 C.F.R. Part 14.

C. *Routine Use:* See the Notices of Systems of Records for the agency to whom you are submitting this form for this information.

D. *Effect of Failure to Respond:* Disclosure is voluntary. However, failure to supply the requested information or to execute the form may render your claim "invalid."

PAPERWORK REDUCTION ACT NOTICE

This notice is solely for the purpose of the Paperwork Reduction Act, 44 U.S.C. 3501. Public reporting burden for this collection of information is estimated to average 6 hours per response, including the time for reviewing instructions, searching existing data sources, gathering and maintaining the data needed, and completing and reviewing the collection of information. Send comments regarding this burden estimate or any other aspect of this collection of information, including suggestions for reducing this burden, to the Director, Torts Branch, Attention: Paperwork Reduction Staff, Civil Division, U.S. Department of Justice, Washington, DC 20530 or to the Office of Management and Budget. Do not mail completed form(s) to these addresses.



640 Fifth Street
Suite 200
Lincoln, CA 95648

tel: 916.434.2553
fax: 916.434.2560

DESIGNATION OF REPRESENTATION

To whom it may concern:

RE: Claim No.:
Date of Loss:

Pursuant to Section 2870 and 2871 of the California Unfair Claims Settlement Practices Regulations, I hereby designate DENNIS B. HILL of D.B. HILL, APLC as my attorney to handle all aspects of my personal injury claim, wrongful death claim and/or the personal injury claim(s) of my minor children or of minors of which I am the legal guardian, regarding the above referenced incident.

Any and all prior authorizations are hereby revoked by the undersigned as of the date of this authorization as applying to attorneys or law firms other than DENNIS B. HILL and D.B. HILL, APLC.

Dated: 20 Jan 19

Christian P. Silva
Client

Dated: 6-20-2019

Dennis B. Hill
Dennis B. Hill, Attorney